



MEMORANDUM OF UNDERSTANDING (MoU)

This Memorandum of Understanding (MOU) is made on 27th day of June 2023, at Lucknow, Uttar Pradesh.

BETWEEN

Government of Uttar Pradesh (GoUP) through Shri Pranjal Yadav, Secretary, Micro, Small, Medium Enterprises and Export Promotion Department, Government of Uttar Pradesh, having its office at C Block, Lok Bhavan, Lucknow, UP. (Hereinafter referred to as "MSME-UP") of one part;

AND

Indian Institute of Packaging (PAN No. AAATII1545E) IIP, a premier institute under the Ministry of Commerce and Industry, Government of India, registered under the Societies Registration Act 1860 of the Government of Maharashtra, Registration No. Bom: 48/66 GBBSD having its registered office at Plot No. E-2, MIDC Area, Andheri East, Mumbai-400093, Maharashtra (Hereinafter referred to as "IIP") through its Director Shri R.K. Mishra, of second part.

MSME-UP and IIP are herein after collectively referred to as "Parties" and individually as "Party".

WHEREAS, IIP is set up to promote Research and Development in Packaging and Packaging Design; to recommend Standards, Test, Evaluate & Certify Packages, Packaging Systems; Packaging Materials, Equipment and Processes; to provide Consultancy Services on Packaging; to provide short & long term training in Packaging Technology; to provide Education in Packaging Technology and to study packaging for exports as per commodity as well as country-wise and suggest measures to authorities concerned for effecting improvement.



AND WHEREAS, Government of Uttar Pradesh, through its Department of MSME & Export Promotion works towards creating enabling environment for the growth and development of MSMEs and the exports of their products in the state of UP.

AND WHEREAS through this MoU, the collaboration between MSME-UP and IIP aims to accelerate the development of packaging, design and standards for the produce (including ODOP products) in the State. The focus is on facilitating the structured adoption of these packaging designs and standards by manufacturers, exporters, craftsmen and traders in the state. The collaboration would emphasize the significance of training stakeholders, assessing vendors and artisans, and promoting the use of standardized packaging by MSMEs. This collective approach targets the improved sale of traditional, high-quality products, as well as products with complex shape and design and products of all other kinds including perishables thereby increasing the visibility, acceptance and shelf life of these products in broader national and global market.

NOW, THEREFORE, THIS MoU WITNESSES as below:

I. ROLES AND RESPONSIBILITIES:

MSME-UP and IIP hereby agree to cooperate with each other, aimed at development of packaging design and standards for the produce of the state, including ODOP, in Uttar Pradesh.

A) IIP

1. Under this MoU, IIP will conduct Education programmes, Skill Development, and Capacity Building Training on Packaging as well as Laboratory Testing and certification of Packaging Materials and Packages for Packaging & allied Industry and Provide Technical Consultancy on Packaging Design, prototype development and specifications.



2. Design & Development of Packaging:

- a. IIP would use its domain expertise in packaging, design, development and packaging specification.
- b. IIP will create conceptual structural designs of packaging and prototypes for state's products.

3. Institutional Facility:

- a. IIP will establish an institutional facility at the Institute of Entrepreneurship Development (IED), Sarojini Nagar, Lucknow, Uttar Pradesh.
- b. IIP will utilize the institutional space provided by MSME-UP for Teaching, research and development of packaging designs, conducting packaging exhibitions, and organizing training/workshops/Conferences for producers/stakeholders /exporters /entrepreneurs/trainers/officers of the State.

4. Skill Development & Capacity Building Trainings:

- a. IIP will develop instructional content and resources related to packaging materials, toolkits, and designs, in accordance with the approved packaging prototypes.
- b. IIP will create course content/curriculum an extensive module for conducting courses (Short time and long duration: regular and virtual), sensitization workshops/conferences/seminar aimed at raising awareness among stakeholders, including artisans, exporters, agri-entrepreneurs and MSME units, about globally accepted packaging standards, including development of eco-friendly and sustainable packaging materials.
- c. Fifty percent of the seats in the regular courses will be reserved for the candidates having domicile certificate of Uttar Pradesh.



B) MSME-UP

MSME-UP shall assist IIP in achieving the above-mentioned objectives by:

1. MSME-UP will provide necessary approvals for establishing an institutional structure/ facility to IIP at Institute of Entrepreneurship Development (IED), Sarojini Nagar, Lucknow.
2. MSME-UP, through available institutional framework, would assist IIP to carry out its packaging related activities including awareness/ orientation workshops/exhibitions etc. in Uttar Pradesh.
3. MSME-UP will provide necessary assistance to get required affiliation from state universities and other accreditation agencies.

Necessary budgetary support mechanism for the project would be discussed and finalised by both the parties.

II. PROJECT TIMELINE

This MoU will commence from 27th day of June, 2023 and will continue for initial period of 33 years on perpetual lease basis and subsequent extension thereof subject to approval.

III. OPERATIONS AND CO-ORDINATIONS

1. Each party will use information which is made available by the other party under this MOU solely for achieving the purpose of this MOU. However, if such purpose involves disclosing such information to third party or publishing such information in any form, then prior written consent of the other party should be obtained.
2. Project expenses shall be decided mutually based on stipulated government rules/orders/procedures.



3. Any amendment in this MoU will be made in writing by mutual consent of both the parties.

IV. FORCE MAJEURE

1. For the purpose of this MoU 'Force Majeure' means an event which is beyond the reasonable control of a Party, either MSME-UP or IIP and which makes a party's performance regarding its obligations hereunder impossible or so impracticable as reasonably to be considered impossible in the circumstances and include, but is not limited to war, riots, civil disorder, earthquakes, fire, explosions, storm, flood, and other adverse weather conditions, strikes, lock-outs, or other similar actions, political uncertainties, change in priorities in the National and State missions, which is not within the power of the Party invoking "force majeure" to prevent any other action by the other Party.
2. If any Party finds itself incapable to perform its duty due to Force Majeure, it will give notice to other Party that Force Majeure event has arisen.
3. The failure of any Party, either MSME-UP or IIP to fulfil any of its obligations is hereunder shall not be considered to be the breach of or default under this MoU in so far as such inability arises from an event of Force Majeure provided that the Party affected by such event should take all reasonable precautions and due care for reasonably carrying out the terms and condition of this MoU.
4. In the event of a Force Majeure, MSME-UP and IIP shall consult each other with a view to agreeing on appropriate measures to be taken under the circumstances.

V. TERMINATION

This MoU can be terminated only with mutual consent with a written notice of 180 days, showing adequate reason.

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VI. DISPUTES RESOLUTION

Any dispute between MSME-UP and IIP on any matter that has relevance to the smooth and effective implementation of the MoU shall be settled through mutual discussion.

IN WITNESS WHEREOF the Parties hereto have signed this MoU on the day and year first above written.

For and on behalf of Governor of
Uttar Pradesh


(Pranjal Yadav)

Secretary,
Department of MSME & Export Promotion,
Government of Uttar Pradesh

For and on behalf of IIP


27.06.2023
(R.K. Mishra)

Director,
Indian Institute of Packaging

Witness 1

Name:

Signature:


Pawan Agrawal
Director IED

Witness 2

Name:

Signature:


Junil Kumar
Joint Commissioner
DDOP